STATE OF NEW YORK

5391

2025-2026 Regular Sessions

IN SENATE

February 21, 2025

Introduced by Sen. SCARCELLA-SPANTON -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation

AN ACT to amend the environmental conservation law, in relation to the burning of wood, coal, natural gas, propane, or other fuels for the purposes of cooking or otherwise preparing food

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. This act shall be known and may be cited as the "Preserving Our Culinary Traditions Act".

§ 2. Section 75-0109 of the environmental conservation law is amended by adding a new subdivision 5 to read as follows:

5. Notwithstanding any law, rule or regulation to the contrary, the burning of wood, coal, natural gas, propane, or other fuels for the purposes of cooking or otherwise preparing food shall be excluded from any prohibitions or restrictions enacted as a result of compliance with the mandates of the New York state climate leadership and community protection act pursuant to chapter one hundred six of the laws of two thousand nineteen, inclusive of any recommendations of any of such act's derivative bodies, as well as any prohibitions or restrictions enacted in accordance with local law or regulation.

§ 3. This act shall take effect immediately.

EXPLANATION--Matter in *italics* (underscored) is new; matter in brackets [-] is old law to be omitted.

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